

Gulfam v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 February 2019 · WRIT - C No. - 6370 of 2019 · **Writ disposed; clause 6.5 representation to EE in one month; recovery stayed.**

HEADNOTE

A writ challenging a recovery citation as founded on an inflated electricity bill was disposed of by relegating the consumer to a representation before the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005, to be decided in accordance with law within one month, with coercive recovery stayed for that period.

FACTUAL SUMMARY

Gulfam challenged before the Allahabad High Court a recovery citation dated 25 January 2019 demanding Rs. 1,37,055 plus other charges. He submitted that the citation was founded on an inflated electricity bill and he disputed the bill itself. Counsel for the Electricity Department stated that the petitioner could make a representation before the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to Executive Engineer

HOLDING

Where a consumer disputes as inflated the electricity bill underlying a recovery citation, the writ is disposed of with liberty to represent before the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005; such representation, if made, shall be considered and decided in accordance with law within one month, and no coercive action shall be taken on the recovery citation for that period. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 The Court accepted the licensee's submission that an inflated-bill objection to a recovery citation is to be made before the Executive Engineer under Clause 6.5, and directed that any such representation be decided within one month. ¶ 1

clause-6.5-statutory-remedy The writ was not decided on the merits of the bill; the consumer was relegated to the Clause 6.5 statutory representation before the Executive Engineer, to be considered in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL UNDERLYING THE RECOVERY CITATION OF RS. 1,37,055 DATED 25.1.2019 WAS INFLATED OR OTHERWISE UNSUSTAINABLE

left to the Executive Engineer under Clause 6.5 ¶ 1